

23NWCV00826 23NWCV00826

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-25

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#14

GUEVARA v. RAMOS, ET AL.

CASE NO.: 23NWCV00826

HEARING: Tuesday, August 25, 2026, at 9:30 AM

Plaintiff PEDRO GUEVARA's Motion to Tax Costs is GRANTED in part.

Moving Party to give notice.

Background

On

March 17, 2023, Plaintiff PEDRO GUEVARA aka PETE GUEVARA ("Plaintiff") filed this negligence action against Defendants ROLANDO LUDA RAMOS ("Ramos"), U-HAUL TITLING, LLC ("Defendant or Titling") and DOES 1-30. Defendant Ramos rented a U-Haul truck owned by Defendant Titling. (Complaint at p. 5.) Plaintiff alleges Defendant Ramos rear ended Plaintiff. (Complaint at p. 5.) Plaintiff contends Defendant Ramos was negligent because Defendant Ramos drove too fast and was unable to safely stop. (Complaint at p. 5.)

Plaintiff's

Form Complaint asserts the following causes of action:

(1) Motor Vehicle

(2) General Negligence

On

November 4, 2025, the Court GRANTED Defendant Titling's motion for summary judgment.

Discussion

"[A] prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP §1032(b).)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) However, "[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]." (*Id.*, at 699.) The court's first determination, therefore, is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show it to be unnecessary or unreasonable. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

It is undisputed Defendant Titling is the prevailing party and entitled to costs. (See Judgment as to 2013 U-HAUL TITLING 1, LLC.)

Whether Defendant Titling's Memorandum of Costs is Timely

A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after service of the notice of entry of judgment or dismissal by the law clerk under CCP § 664.5. (California Rule of Court, Rule 3.1700(a)(1).)

On March 19, 2026, the Court entered Judgment for Defendant Titling against Plaintiff. Defendant

Titling filed the Memorandum of Costs on March 16, 2026. Thus, Defendant Titling did not file Memorandum of Costs late, rather Defendant Titling filed it prematurely.

However, time limitations pertaining to a memorandum of costs are not jurisdictional, and the premature filing of a memorandum of costs is treated as a "mere irregularity at best" that does not constitute reversible error absent a showing of prejudice. Rather, courts treat prematurely filed cost bills as being timely filed. (Haley v. Casa Del Rey Homeowners Assn. (2007) 153 Cal.App.4th 863, 880, citation omitted.)

Plaintiff has not articulated any prejudice and thus, the Court waives this mere irregularity.

Category 1: Filing and Motion Fees

Filing, motion, and jury fees are recoverable costs. (CCP §1033.5(a)(1).) There shall be no fee for civil case management statements. (Cal. Gov. Code § 70617(b)(3).)

The Court strikes \$175.25 in costs associated with filing a Case Management Statement.

The Court finds Defendant Titling's costs to file a Reply and Notice of Entry of Order to be necessary for litigation.

Category 14: Fees for Electronic Filing or Service of Documents through an Electronic Filing Service Provider"

Because Los Angeles County requires electronic filing, the costs are recoverable under Code of Civil Procedure section 1033.5, subdivision(a)(14) and the SBA.

Defendant Titling's attached invoices demonstrate how it incurred \$227.65 in electronic filing fees and thus, this category is not stricken.

Category 15: Other

Defendant Titling seeks \$2,685.00 in costs for sanctions related to the Court's ruling on Defendant Titling's motion to deem Request for Admissions, Set One, Admitted.

The Court GRANTS Plaintiff's Motion to Tax this cost.

First, sanctions are not costs authorized under CCP § 1033.5.

Second, Monetary sanctions are more properly collected as a money judgment. "[M]onetary sanction orders are enforceable through the execution of judgment laws. [Citation.] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction." (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615 [internal citation omitted]; Jones v. Otero (1984) 156 Cal.App.3d 754, 759 ["An order imposing monetary sanctions may be enforced under the Enforcement of Judgments Law"].)

Conclusion

Plaintiff's Motion to Tax is GRANTED in part. The Court STRIKES the following items:

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Category 1: \$175.25

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Category 15: \$2,685.00